

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS-----X
OKSANA EREMINA,

Plaintiff,

*against*THE CITY OF NEW YORK, NYPD POLICE OFFICER
ANTHONY CONTESSA and NYPD POLICE OFFICER
"JOHN" DOE"Defendants.
-----X**SUMMONS**

Index No.:

Venue is based upon

Location of Occurrence

To the above-named Defendants

YOU ARE HEREBY SUMMONED to Answer the Complaint in this action and to serve a copy of your Answer, or, if the Complaint is not served with this Summons, to serve a Notice of Appearance, on the Plaintiff's Attorney within 20 days after the service of this Summons, exclusive of the day of service (or within 30 days after the service is complete if this Summons is not personally delivered to you within the State of New York); and in case of your failure to appear or Answer, judgment will be taken against you by default for the relief demanded in the Complaint.

Dated: Brooklyn, NY

January 14, 2022

Defendants:

City of New York Attn: Corporation Counsel
100 Church St., 5 Fl.
New York, NY 10007New York Police Department 60th
Precinct 2951 W 8th St.,
Brooklyn, NY 11224
Attn: P.O. Anthony Contessa
DENIS VORONTSOV, ESQ.*Attorney for Plaintiff*Vorontsov Law Firm, PLLC
1599 East 15th St, 4th Floor
Brooklyn, NY 11230
dv@vlf.law 212.295.5838

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS-----X
OKSANA EREMINA,

Plaintiff,

*against*THE CITY OF NEW YORK, NYPD POLICE OFFICER
ANTHONY CONTESSA and NYPD POLICE OFFICER
"JOHN DOE"Defendant.
-----X**VERIFIED COMPLAINT**

Index No.:

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Plaintiff, by her attorneys, the VORONTSOV LAW FIRM, PLLC, complaining off the Defendants, respectfully alleges the following upon information and belief:

FIRST: That at all times hereinafter mentioned, Plaintiff, was and still is a resident of the County of Kings in the State of New York.

SECOND: That at all times hereinafter mentioned, Defendant, THE CITY OF NEW YORK, was and still is a municipal corporation created pursuant to the laws of the State of New York.

THIRD: That at all times hereinafter mentioned, the New York City Police Department was and still is an agency within the control of the City of New York.

FOURTH: That on January 15, 2021 Plaintiff served a Notice of Claim upon the Defendants within ninety (90) days after the causes of action herein accrued.

FIFTH: That on June 9, 2021 a hearing in accordance with Section 50-H of the General Municipal Law was held remotely at 160 Broadway, New York, NY.

SIXTH: That this action is commenced within one (1) year and ninety (90) days after the causes of action herein accrued.

SEVENTH: That at least (30) days have elapsed since the aforesaid Notice of Claim was served upon the Defendants and the Defendants have neglected and/or refused to make adjustments or payment in response thereto.

EIGHTH: That at all times hereinafter mentioned, Defendants Police Officers ANTHONY CONTESSA and "JOHN DOE" were acting as agents, servants and/or employees of the Defendant, THE CITY OF NEW YORK.

NINTH: That at all times hereinafter mentioned, Defendants, THE CITY OF NEW YORK trained, managed and supervised Defendants, P.O. ANTHONY CONTESSA and P.O(s)."JOHN DOE "in their capacity as police officers.

TENTH: That at all times hereinafter mentioned, Defendants, THE CITY OF NEWYORK, instituted protocol and procedures for criminal investigation, arrests and providing medical attention and treatment for those under the control and custody of the New York City Police Department.

ELEVENTH: That on or about the 17th day of October, 2020, Defendants, Police Officers, ANTHONY CONTESSA and "JOHN DOE", while acting in their official capacity as police officers, wrongfully and improperly detained and arrested Plaintiff at the vicinity of her residence at 3036 Brighton 4th Street in Brooklyn, NY.

TWELFTH: That on or about 17th day of October, 2020, Defendants, Police Officers, ANTHONY CONTESSA and "JOHN DOE", while acting in their official capacity as a police officers, detained, arrested and filed an untrue and meritless arrest report with allegations unsubstantiated by probable cause.

THRITEENTH: That at all times hereinafter mentioned, Defendant, CITY OF NEW YORK failed to train its employees, to recognize and take steps to correct deficiencies in police procedure which led to Plaintiff's wrongful arrest and detention, despite being repeatedly advised that there was no evidence of injury to the accuser Ginger Stebbins, and that in fact it was the Plaintiff that called 911 to arrest Ginger's alleged boyfriend Vincent Russo who had violently assaulted Plaintiff two days prior and caused her to seek treatment for her injuries in Coney Island Hospital.

FOURTEENTH: Plaintiff also informed Police Officers ANTHONY CONTESSA and "JOHN DOE(s)" that she was also in Coney Island Hospital the day prior for chest pains and that she was in possession of discharge papers and prescription medications, which included, heart, autoimmune, seizure and anxiety medications.

FIFTINEETH: Plaintiff's medications and hospital discharge papers, which confirmed she was in a high risk of suffering a heart attack and needed to seek immediate emergency treatment for any chest pains or heart attack symptoms, were discovered or should have been reasonably discovered by the Defendants, Police Officers ANTHONY CONTESSA and "JOHN DOE(s)" during the search incident to arrest and the inventory search at the 60th Precinct.

SIXTEENTH: That on or about 17th day of October, 2020, Plaintiff, was experiencing symptoms of a heart attack and made multiple requests to the Defendants, Police Officers ANTHONY CONTESSA and "JOHN DOE(s)" for medical attention and access to her prescribed medications, yet the Defendants negligently, carelessly, recklessly and maliciously, ignored and denied Plaintiff's requests. Said request were witnessed and also made on the Plaintiff's behalf by an unrelated detainee Gosha Pasieshvili.

SEVENTEENTH: That on or about 17th day of October, 2020, while the Plaintiff was detained at the 60th Precinct of the New York City Police Department, Defendants, Police Officers, ANTHONY CONTESSA and "JOHN DOE(s)", while acting in their official capacity, wrongly and improperly denied Plaintiff medical treatment and access to her medication when it was clear and obvious that she was experiencing a heart attack and was in need of medical attention.

EIGHTEENTH: That as a result of the negligence, carelessness and recklessness of the Defendants, THE CITY OF NEW YORK, Police Officers ANTHONY CONTESSA and "JOHN DOE(s)", the Plaintiff OKSANA EREMINA, was denied immediate and proper medical treatment with resulted in the significant exacerbation of preexisting injuries and condition, including heart, autoimmune disease and anxiety.

NINETEETH: Had the Defendants provided and permitted proper and immediate medical treatment to be rendered to Plaintiff, OKSANA EREMINA, that the condition of her health and heart would not have seriously worsened.

TWENTYETH: That the Defendant CITY OF NEW YORK, was negligent, careless and reckless in the hiring, training and supervising of its employees, servants, agents so as to cause Plaintiff, OKSANA EREMINA, to suffer a significant exacerbation of her pre-existing conditions and to suffer new and significant injuries and conditions as alleged herein.

TWENTYFIRST: That the occurrence and the injuries sustained by the Plaintiff, OKSANA EREMINA, were caused by the negligence of the Defendants CITY OF NEW YORK, Police Officers ANTHONY CONTESSA and "JOHN DOE(s)", their agents, servants, and/or employees, without negligence on the part of the Plaintiff.

TWENTYSECOND: That by reason of negligence, recklessness and carelessness of the Defendants CITY OF NEW YORK, Police Officers ANTHONY CONTESSA and "JOHN DOE(s)", as aforesaid, the Plaintiff OKSANA EREMINA, became sick, depressed and disabled, received significant psychological and physical injuries to be of a permanent nature and the Plaintiff is and will be incapacitated for a long period of time.

TWENTYTHIRD: That as a result of the aforesaid wrongful arrest, Plaintiff was forced to expend considerable sums of money and time to provide for her defense against the meritless charges and was required to make subsequent court appearances in the Brooklyn Criminal Court until all her charges were dismissed on or about February 24, 2021.

WHEREFORE, Plaintiff OKSANA EREMINA, demands judgment against the Defendants. Damages sought exceed the jurisdictional limits of all lower courts which would otherwise have jurisdiction. Damages for the Plaintiff are sought in the amount to be determined upon trial together with punitive damages, as well as all costs and disbursements of this action.

Dated: Brooklyn, NY
January 14, 2022



DENIS VORONTSOV, ESQ.

Attorney for Plaintiff

1599 East 15th St, 4th Floor

Brooklyn, NY 11230

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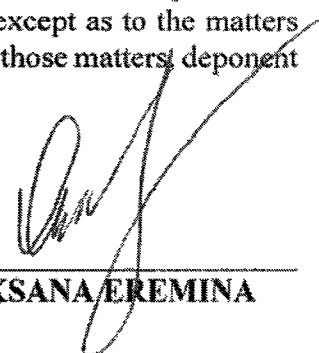
INDIVIDUAL VERIFICATION

STATE OF NEW YORK)

) ss:

COUNTY OF KINGS)

OKSANA EREMINA, being duly sworn, deposes and says that deponent is the Plaintiff in the within action; that he has read the foregoing Summons and Complaint and knows its contents; that it is true to deponent's own knowledge, except as to the matters therein stated to be alleged on information and belief, and that as to those matters deponent believes them to be true.


OKSANA EREMINA

Sworn to before me
this 4 day of **January, 2022**.


NOTARY PUBLIC

DENIS M. VORONTSOV
NOTARY PUBLIC, State of New York
No. 02VO6385308
Qualified in Kings County
Commission Expires: 12/31/20__

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

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OKSANA EREMINA,

Plaintiff,

Index No.:

against

THE CITY OF NEW YORK, NYPD POLICE OFFICER
ANTHONY CONTESSA and NYPD POLICE OFFICER
"JOHN DOE"

Defendants.
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SUMMONS & VERIFIED COMPLAINT

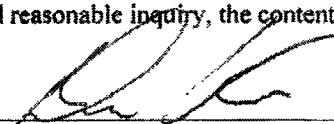
Vorontsov Law Firm, PLLC.

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Pursuant to 22 NYCRR 130-1.1, the undersigned, an attorney admitted to practice law in the court of the State of New York, certifies that upon information and belief and reasonable inquiry, the contentions contained in the annexed document are not frivolous.

Dated: January 14, 2022

By: 
Denis Vorontsov, Esq.

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS**

-----X
OKSANA EREMINA

Plaintiff/Petitioner,

- against -

Index No. 501438/2022

THE CITY OF NEW YORK, NYPD POLICE OFFICER
ANTHONY CONTESSA and NYPD POLICER

"JOHN DOE" Defendant/Respondent.

-----X
**NOTICE OF ELECTRONIC FILING
(Mandatory Case)
(Uniform Rule § 202.5-bb)**

You have received this Notice because:

1) The Plaintiff/Petitioner, whose name is listed above, has filed this case using the New York State Courts E-filing system ("NYSCEF"), and

2) You are a Defendant/Respondent (a party) in this case.

● **If you are represented by an attorney:**

Give this Notice to your attorney. (Attorneys: see "Information for Attorneys" pg. 2).

● **If you are not represented by an attorney:**

You will be served with all documents in paper and you must serve and file your documents in paper, unless you choose to participate in e-filing.

If you choose to participate in e-filing, you must have access to a computer and a scanner or other device to convert documents into electronic format, a connection to the internet, and an e-mail address to receive service of documents.

The **benefits of participating in e-filing** include:

- serving and filing your documents electronically
- free access to view and print your e-filed documents
- limiting your number of trips to the courthouse
- paying any court fees on-line (credit card needed)

To register for e-filing or for more information about how e-filing works:

- visit: www.nycourts.gov/efile-unrepresented or
- contact the Clerk's Office or Help Center at the court where the case was filed. Court contact information can be found at www.nycourts.gov

To find legal information to help you represent yourself visit www.nycourthelp.gov

**Information for Attorneys
(E-filing is Mandatory for Attorneys)**

An attorney representing a party who is served with this notice must either:

1) immediately record his or her representation within the e-filed matter on the NYSCEF site www.nycourts.gov/efile ; or

2) file the Notice of Opt-Out form with the clerk of the court where this action is pending and serve on all parties. Exemptions from mandatory e-filing are limited to attorneys who certify in good faith that they lack the computer hardware and/or scanner and/or internet connection or that they lack (along with all employees subject to their direction) the knowledge to operate such equipment. [Section 202.5-bb(e)]

For additional information about electronic filing and to create a NYSCEF account, visit the NYSCEF website at www.nycourts.gov/efile or contact the NYSCEF Resource Center (phone: 646-386-3033; e-mail: nyscef@nycourts.gov).

1/22/22

Dated: _____

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